

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CWP No.3980 of 2011

Decided on: 22.08.2026

Ranbir Singh

.....**Petitioner**

Versus

State of H.P. & Ors.

....**Respondents**

Coram

Ms. Justice Jyotsna Rewal Dua

Whether approved for reporting?¹

For the Petitioner: Mr. Digvijay Singh Bisht, Advocate.

For the Respondents: Mr. Anup Rattan, Advocate General
with Mr. L.N.Sharma, Deputy Advocate
General.

Jyotsna Rewal Dua, Judge

This writ petition has been filed for the grant of
following substantive reliefs:-

“i). That respondents may be directed to produce
entire relevant record of nautor-file of late Shri Totu
Ram with respect to aforesaid land and also they may
be directed to produce before this Hon'ble Court entire
record showing details of the proceedings and action

¹Whether reporters of print and electronic media may be allowed to see the order? Yes.

taken by them on the representations of late Shri Totu Ram as well as the present petitioner so as to show progress made, if any, to remove the grievances of the petitioner.

ii) Appropriate orders and directions may also be issued to the Respondents to re-construct the nautor-file in the name of late Shri Totu Ram in case, same is found missing and also directions may be issued to them to issue requisite patta and attest the requisite mutation on the basis of the order of grant firstly in the name of late Shri Totu Ram and thereafter, entries in the revenue record, may be brought upto date and completed in favour of the legal-representatives of late Shri Totu Ram so that they are recorded owners in possession of the aforesaid land.”

2. Several orders have been passed in this writ petition from time to time. Pursuant to which, not only the respondents have filed reply, but also filed several affidavits /status reports from time to time.

From the pleadings and submissions of the parties, it comes out that Sh. Totu Ram, father of the petitioner, presented an application to the respondents on 20.05.1965 for grant of *Nautor* land in Khasra number 2102/92/2/1, measuring 10-02 bighas at Chak Deem, Tehsil Jubbal, District Shimla. It is the case of the petitioner that Sh. Totu Ram had deposited Rs. 540/- towards *Nazrana* in lieu of allotment of the aforesaid land on 03.02.1970 (Annexure P-1). A perusal of the aforesaid

document makes it evident that it does not term the aforesaid deposit as *Nazrana* nor the same has been related to any land allotment.

3. It is the specific case of the respondents that Totu Ram, though had applied for *Nautor* land, but there is no entry regarding sanction of any land in his favour in the record available with the respondents. Respondents have *inter alia* pleaded that amount of Rs. 540/-, that was deposited by petitioner's father on 03.02.1970, was in respect of “सरप्लस आमदनी नज़राना मालकियत” not *Nazrana* for the *Nautor* land. Further according to the respondents, had the *Nautor* been sanctioned in favour of petitioner's father, then copy of sanction *Patta* would have been supplied to him. No such *Patta* has been produced. It is the categorical stand of the respondents that available record, i.e. *Nautor* register, Day Book, and *Patta* register available with them, does not reflect sanction of any land under *Nautor* in favour of petitioner's father. Relevant pleadings of the respondents state in this regard are as under:-

“4. That as far as the question of the reconstruction of the Natour file is concerned, in this regard, it is submitted that except an entry made in the Natour Register in the name of Late Sh. Totu Ram, no other record is available. It is pertinent to

mention here that from the perusal of the Natour Register maintained at Tehsildar office Jubbal it has been found that the entries at serial No. 63, show that the petitioner's father Sh. Totu Ram had presented application for grant of land on dated 20.05.1965 but there is no entry regarding sanction of any land in his favour under column No. 10 of the said register. All other columns right after column No 6 against the serial No. 63 are also lying vacant. It means that the case file was neither sent to special agencies for report nor any sanction was issued in this case. Here it is also worthwhile to mention that the petitioner's father had filed the application in the year 1965 whereas the Nautor Rules were framed in the year 1968.

5. That the petitioner has wrongly contended that the process of reconstruction of the said file was started one year back. In this regard, the Tehsildar Jubbal has reported that on the basis of the representation of the petitioner, the matter was got enquired through the revenue field agency and after visiting the spot by the revenue field agency the report was sent to the Sub-Divisional Officer (C) Rohru vide his letter No 1550- dated 10.10.2018. Thus contentions of the petitioner in para No.2 of the rejoinder that any steps were taken to reconstruction of the Natour file is wrong, hence denied. The report submitted by the Sub- Divisional Officer (C) Rohru vide letter No 4870 dated 19.12.2019 is annexed as Annexure- R-3.”

4. Nautor was alleged to have been sanctioned in favour of petitioner's father Sh. Totu Ram in 1965/1970. Nautor Scheme was closed in 1980. Sh. Totu Ram never

took legal recourse or asserted his right to land under *Nautor*. One of his son-present petitioner instituted this writ petition in 2011 seeking grant of *Nautor* land that was alleged to have been sanctioned in favour of Sh. Totu Ram in the year 1965/1970. Respondents have also placed on record joint statement of petitioner and his two other brothers, namely S/Sh. Devi Saran and Rishi Lal (not parties to the petition). The joint statement was recorded on 19.05.2018 i.e. after the filing of this writ petition by Shri Ranbir Singh. As per this joint statement (page 43 of the paper book):- The successors-in-interest of Shri Totu Ram (including present petitioner) were neither in possession of any *Patta* nor sanction letter qua the alleged *Nautor* ; Sh. Totu Ram never remained in possession of land allegedly sanctioned in his favour under *Nautor* in 1965/1970; Petitioner and his two brothers (successors of Sh. Totu Ram) did not even know the whereabouts of the land allegedly sanctioned in their favour under *Nautor*. Respondents have also pleaded that as per Jamabandi for the year 1982-83 the land was classified as '*Banjar Kadim*'. In the Jamabandi for the year 1997-98, nature of land was reflected as '*Chargah Darkhtan*'. As per *Nautor* Rules, which came into force in 1968 and the Forest Conservation

Act 1980, such type of land cannot even be granted under *Nautor*.

5. The case file does not demonstrate that land in question ever remained in ownership or even in possession of Sh. Totu Ram and thereafter his sons including the present petitioner. The record does not establish that land in question was ever sanctioned in favour of petitioner's father as *Nautor*. Respondents have disputed the assertions of the petitioner. All material and relevant facts are in dispute. Petitioner has not been able to establish his case. Therefore, relief prayed for by the petitioner cannot be granted to him in exercise of jurisdiction under Article 226 of the Constitution. Hence, this petition stands dismissed.

Pending miscellaneous application(s), if any, also to stand disposed of.

August 22, 2026

R.Atal

Jyotsna Rewal Dua

Judge